

(49)

Tentative Ruling

Re: ***In Re: Steven Antonio Kuripeth***
Superior Court Case No. 25CECG00040

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To take off calendar.

Explanation:

On July 15, 2026, Petitioner's motion to consolidate cases for all purposes for Case Nos. 25CECG00038, 25CECG00039, 25CECG00040, and 25CECG00041, with Case No. 25CECG00038 being designated as the master file was granted. Rules of Court, rule 3.350 (c) requires that after a motion to consolidate has been granted that "for all purposes including trial, any subsequent document must be filed only in the lead case." Petitioner is required to file the petition and all other future documents related to Case No. 25CECG00040 in the master file, which is Case No. 25CECG00038. As the petition was filed in the wrong case after consolidation, the matter is taken off calendar.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
(Judge's initials) (Date)

(48)

Tentative Ruling

Re: ***Bowerman v. Coalinga Regional Medical Center-Rural Health Clinic et al.***

Superior Court Case No. 25CECG01547

Hearing Date: August 25, 2026 (Dept. 403)

Motion: Plaintiff's Motion for Reconsideration

Tentative Ruling:

To deny plaintiff Heidi Bowerman's motion for reconsideration of the court's April 16, 2026 order to set aside the entry of default against defendant Coalinga Medical Center, LLC. (Code Civ. Proc. § 1008.)

Explanation:

Plaintiff Heidi Bowerman ("Plaintiff") is seeking reconsideration pursuant to Code of Civil Procedure section 1008, subdivision (a), of the court's April 16, 2026 Law and Motion Minute Order that adopted the tentative ruling granting defendant Coalinga Medical Center, LLC's ("Defendant's") motion to set aside the entry of default against it.

A motion for reconsideration must be made within ten days of service of the notice of entry of the order. (Code Civ. Proc. § 1008, subd. (a).)

The court deems this motion timely under section 1008. The court has the authority to reconsider its ruling at any time and exercise the means necessary to carry its jurisdiction into effect. (*Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1105; See Code Civ. Proc., § 187.) The service of the minute order at issue was not mailed to Plaintiff's correct address. Proper service of the minute order was effected on April 30, 2026. Plaintiff attempted to file a motion for reconsideration within the 15 day deadline, however, the filing was rejected due to procedural error. The present motion was accepted for filing on June 1, 2026, which is considered herein.

Under Code of Civil Procedure section 1008, subdivision (a), a party moving for reconsideration of a court order must show that there are "new or different facts, circumstances, or law" that justify reconsideration of the order. (Code Civ. Proc., § 1008, subd. (a).) "Case law after the 1992 amendments to section 1008 has relaxed the definition of 'new or different facts,' but it is still necessary that the party seeking that relief offer some fact or circumstance not previously considered by the court." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212-213, internal citations omitted.) The requirements of section 1008 are jurisdictional, and failure to comply with the requirement of demonstrating new facts, circumstances or law requires denial of a motion for reconsideration. (*Kerns v. CSE Ins. Group* (2003) 106 Cal.App.4th 368, 391.)

Plaintiff fails to present new or different facts, circumstances, or law in her motion papers that would establish the jurisdictional grounds required for reconsideration. Here,

Plaintiff contends that additional facts were to be presented at oral argument to support her position. However, the instant motion does not present any new facts for the court to consider. Plaintiff argues that Defendant's counsel's failure to appear was a "strategic", "voluntary", and "intentional" decision to cause default to be entered against his client. She then explains this was a "tactical" decision for the purpose of "obtaining evidentiary documents Plaintiff would file during the Request for Judgement". Here, while Plaintiff presents a theory, new facts or evidence are not offered in support. Similarly, Plaintiff does not assert that the grounds for reconsideration of the order is due to new law. Plaintiff only argues that the requirements under Code of Civil Procedure section 473 were misapplied. As such, the court lacks jurisdiction to grant Plaintiff's motion for reconsideration.

"A party seeking reconsideration also must provide a satisfactory explanation for the failure to produce the evidence at an earlier time." (*New York Times Co. v. Superior Court* (2005) 135 Cal.App.4th 206, 212, internal citations omitted.) "Courts have construed section 1008 to require a party filing an application for reconsideration... to show diligence with a satisfactory explanation for not having presented the new or different information earlier." (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 839, internal citations omitted.)

Regardless of whether Plaintiff presented new evidence or legal facts, the instant motion must be denied because a satisfactory explanation for why they were not previously presented in opposition of the set aside motion is absent from the instant motion. Plaintiff argues that she was prevented from providing additional facts because she was unable to attend oral argument. However, Plaintiff admits that she failed to request oral argument due to her ignorance of local procedure. Pro per litigants are held to the same standards as attorneys. (*Rapleyea v. Campbell* (1994) 8 Cal.4th 975, 984.) As such, pro per litigants are not entitled to special exemptions from procedural rules. (*Nuno v. California State University, Bakersfield* (2020) 47 Cal.App.5th 799, 812.) Also, the failure to participate in oral argument is not a ground for reconsideration. (*Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500 [Order granting reconsideration under section 1008 was reversed where the moving party did not present any facts or authorities relating to the merits of the underlying motion that were not considered by the trial court when it issued its initial orders].)

As there are no new facts, circumstances, or law presented in the motion at bench, the court must deny the motion for reconsideration for lack of jurisdiction.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC on August 24, 2026.
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